

DAVID MODIKWE

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⌵ DRAFT — FOR REVIEW ONLY ⌵

VIA EMAIL & REGISTERED POST

[INSERT DATE]

TO

Marumo Trustees

Email: info@marumotrustees.co.za / marumo@telkomsa.net

CC

Impact Empowerment Ventures (Pty) Ltd

Email: s12j@impactinafrica.com / zethu@impactinafrica.com

RE: FORMAL CREDITOR CLAIM — IMPACT EMPOWERMENT VENTURES (PTY) LTD (IN LIQUIDATION)
INVESTOR: DAVID MODIKWE

Dear Sir / Madam,

1. Introduction

1.1 I write to you in your capacity as the court-appointed Liquidator of **Impact Empowerment Ventures (Pty) Ltd** ("IEV" or "the Company"), currently undergoing a formal liquidation process in terms of the Companies Act, No. 71 of 2008 and/or the Insolvency Act, No. 24 of 1936.

1.2 I am an individual investor who invested funds through IEV in its capacity as an approved **Venture Capital Company (VCC)** under **Section 12J of the Income Tax Act**. My investment details are as follows:

INVESTOR NUMBER	SHARE CERTIFICATE	INVESTMENT PERIOD	AMOUNT INVESTED
S12J IIM 2019/147	D4	2020	[INSERT]
S12J IEV 2020/191	D34	2020/2021	[INSERT]
S12J IEV 2022/158	D86	2021	[INSERT]
TOTAL			R2,100,000.00

2. Nature of Claim

2.1 My funds were invested by IEV into **The Joseph Company / Muma Investments (Pty) Ltd** for the purposes of **Class D Student Accommodation**, as a qualifying investment under Section 12J.

2.2 The qualifying shares in The Joseph Company were issued **to IEV** (the VCC) in its name. I was issued **Investor Certificates** by IEV, confirming my investment and the corresponding VCC shares.

2.3 I accordingly have a **claim against the liquidation estate** of IEV in the amount of not less than R2,100,000.00, being the capital invested, plus any returns, growth, or interest that may have accrued on the underlying investment.

2.4 I reserve my rights to argue that I hold a **beneficial interest** in the qualifying shares held by IEV in The Joseph Company, and that these shares (or their value) should not form part of IEV's general liquidation estate available to ordinary creditors, but should be **ring-fenced and returned to the investors** whose funds were used to acquire them.

3. Requests for Information

In order to protect my interests and participate meaningfully in the liquidation process, I respectfully request the following information:

A. LIQUIDATION PROCESS

1. The **Master's reference number** for this liquidation;
2. The **date and details of the liquidation order** (whether voluntary or compulsory);
3. The **grounds on which liquidation was sought**, and by whom;
4. Copies of the **First and Second Liquidation and Distribution Accounts** (once prepared);

5. The **date, time, and venue of the next creditors' meeting**, and how to attend;
6. Confirmation of whether a **Section 417/418 inquiry** (Companies Act) has been or will be conducted into the affairs of IEV.

B. INVESTMENT AND ASSET STATUS

7. The current **status and valuation** of the qualifying shares held by IEV in The Joseph Company / Muma Investments;
8. Whether The Joseph Company / Muma Investments has been **approached or engaged** by the liquidator regarding the invested funds;
9. Confirmation of the **total quantum of investor funds** managed by IEV under the Section 12J scheme;
10. The **total number of affected investors** and the aggregate value of claims;
11. Whether IEV's qualifying investments are being treated as **assets of the liquidation estate** or as **ring-fenced investor funds**.

C. MY SPECIFIC INVESTMENT

12. The **current valuation** of my specific investment (Investor No. S12J IIM 2019/147, Share Certificate D4) which has reached its 5-year maturity;
13. Any **income, dividends, or distributions** received by IEV from The Joseph Company in respect of my investment;
14. The **SARS interim statements** as at 28 February 2025 for all three of my investments.

4. Registration as Creditor

4.1 I hereby formally request that I be **registered as a creditor** in the liquidation estate of Impact Empowerment Ventures (Pty) Ltd.

4.2 My claim is in the amount of **R2,100,000.00**, plus any accrued returns, subject to adjustment upon receipt of a full valuation.

4.3 I request confirmation of:

- My registration as a creditor;
- The proof of claim form (if any) to be completed;
- The deadline for the submission of claims;
- The schedule for creditors' meetings.

5. Concerns Regarding the Liquidation

5.1 I wish to formally place on record my concern that this liquidation may have been **engineered or initiated under questionable circumstances**. My basis for this concern is:

- The amounts owed by IEV that purportedly triggered the liquidation appear to be **minor relative to the investor funds** under management;
- The underlying qualifying investment in The Joseph Company / Muma Investments is reportedly **performing well**;
- Despite the underlying assets having value, IEV claims inability to meet its obligations;
- Investors have been subjected to **prolonged delays and evasive communication** since mid-2025.

5.2 I respectfully request that the Liquidator:

- Conduct a **thorough investigation** into the circumstances leading to the liquidation;
- Investigate whether the directors of IEV engaged in **reckless or fraudulent conduct** in terms of Section 22 or 77 of the Companies Act;
- Consider whether a **Section 417/418 inquiry** into the affairs of IEV is warranted.

6. Contact Details

Full Name	David Modikwe
ID Number	[INSERT]
Mobile	+27 71 858 0868
Email (Work)	david.modikwe@thungela.com
Email (Secondary)	david.modikwe@propertydenvour.com
Email (Personal)	tmodikwe@hotmail.co.za
Postal Address	[INSERT]

7. Conclusion

7.1 I trust that this letter will receive your urgent attention given the significant quantum of my claim and the concerns raised regarding the circumstances of the liquidation.

7.2 I reserve all my rights in this matter, including the right to approach the relevant regulatory authorities (FSCA/FAIS) and the courts for appropriate relief.

7.3 Kindly acknowledge receipt of this letter and confirm my registration as a creditor within **10 (ten) business days**.

Yours faithfully,

David Modikwe

Date

Attachments: VCC Share Certificates (D4, D34, D86) • Investor Certificates • Last Statement (June 2025) • ID Document
• Email Correspondence (June 2025 – February 2026)